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Why the Supreme Court Is Debating Which Founding Fathers Were Drunks

The court's docket increasingly features bizarre historical arguments; 'John Adams took a tankard of hard cider with his breakfast.'

By James Romoser [Follow](#)

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ALEXANDRA CITRIN-SAFADI/WSJ; ISTOCK

Do drug users have a constitutional right to own a gun? The answer may depend on what the Supreme Court thinks about the drinking habits of the Founding Fathers.

Can states count mail-in ballots that are postmarked on time but arrive after Election Day? That may turn on a long-forgotten voting practice from the

Civil War.

As the Supreme Court works through its busiest month, its docket is chockablock with tough cases on modern-day problems. More than ever, the justices are looking deep into the past for answers.

The time machine is driven by the ascendance of originalism—the legal philosophy, pioneered by conservatives, that says the meaning of the Constitution’s words shouldn’t evolve over time.

Though the theory has been fashionable for decades, the court’s conservative supermajority has embraced it with new fervor, sending attorneys scrambling for historical nuggets that once were more useful for Trivial Pursuit.

“The more this form of analysis gets extended, the stranger it becomes,” said Jonathan Gienapp, law and history professor at Stanford and a critic of originalism. “It’s not obvious what from the past matters, and what doesn’t.”

Second Amendment cases are at the forefront of lawyers’ efforts to amass historical ammunition. That’s thanks to a 2022 Supreme Court ruling that significantly expanded the right to carry a gun. The court decreed that today’s gun regulations are constitutional only if they are consistent with early American historical traditions.

Since then, lawyers across the country have argued over what those traditions are. One dispute, pending before the justices, challenges a federal law that prohibits people who use illegal drugs from possessing firearms.

The trouble for originalists is that drug addiction wasn’t a well-accepted concept in the 19th century. So during oral arguments, Justice Neil Gorsuch and others focused on a potential parallel: alcohol use at the time of the founding.

In those days, states commonly passed laws restricting the rights of “habitual drunkards.” But Gorsuch, who co-wrote a children’s book titled

“Heroes of 1776,” noted that many of the founders were themselves heavy drinkers.



Justice Neil Gorsuch, who wrote a book about the Founding Fathers, is intimately familiar with their drinking habits. BRIAN CAHN/ZUMA PRESS

“John Adams took a tankard of hard cider with his breakfast every day,” Gorsuch sternly told a government lawyer who was defending the gun ban. “James Madison reportedly drank a pint of whiskey every day. Thomas Jefferson said he wasn’t much of a user of alcohol—he only had three or four glasses of wine a night.”

If using intoxicants automatically disqualified someone, Gorsuch seemed to suggest, the very people who wrote the Second Amendment would have been disarmed.

Advocates of originalism say this sort of backward-looking reasoning is the only way to prevent modern judges or legislatures from abridging individual rights ratified in the Constitution.

“I get people who see it as sounding crazy,” said Kostas Moros, a director at the Second Amendment Foundation. “But that’s what we agreed to. If it’s not tied to that original meaning, then it means nothing at all.”

In another pending case about police sweeps of cellphone location data, lawyers debated whether warrants requiring Google to share information

were akin to how British customs officers harassed colonists before the American Revolution.

And in the case about mail-in ballots, much of the fight is being waged on a battlefield from 160 years ago. Top Republican and Democratic lawyers squabbled over the details of Civil War “field voting,” when ballots were collected from Union soldiers and transported back home after the election. The question is whether that practice is an apt precedent for state rules that govern mail voting in 2026.

That’s why legal briefs in the case are riddled with citations to an obscure 1915 book by a Boston lawyer named Josiah Henry Benton, who argued that historians had overlooked the practice. Lawyers also dug up archaic legal tracts and 19th century dictionary entries defining the word “election.”

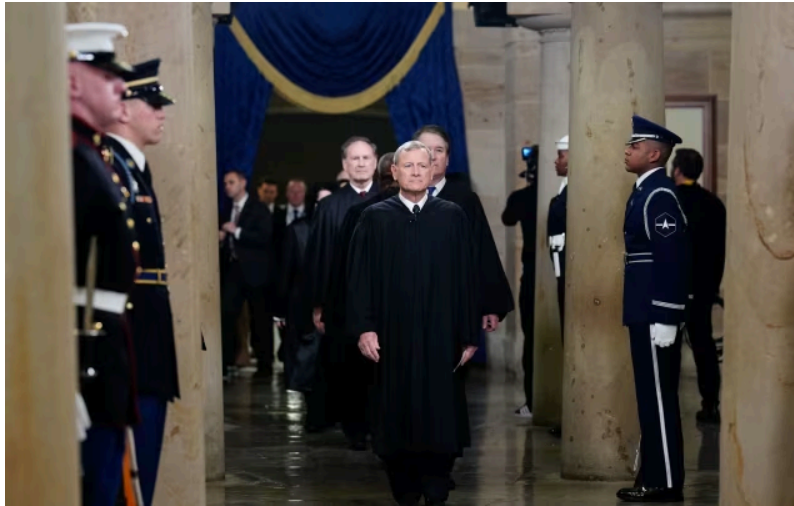
Not surprisingly, both sides say the past supports their present position.

The same is true in perhaps the biggest case of the term that could hinge on history: the challenge to President Trump’s bid to end birthright citizenship for children of undocumented immigrants.

The magical year in that case is 1868, when birthright citizenship was enshrined in the 14th Amendment. The administration argues that the right was never intended to sweep as broadly as it has long been understood.

To defend that position, the administration dusted off old newspaper articles, speeches and other documents that many historians say don’t reflect the true view of the 14th Amendment’s ratifiers. One such artifact is an unsigned, undated and unpublished letter found in the papers of President Andrew Johnson. Another is an 1881 treatise written by a former Confederate officer who wanted to deny citizenship to Chinese immigrants.

Chief Justice John Roberts appeared unconvinced of the administration’s historical arguments.



Chief Justice John Roberts appeared skeptical of the historical arguments made by the administration's lawyers. MELINA MARA/PRESS POOL

Roberts is the only member of the conservative majority who doesn't readily identify as an originalist. Ironically, he may be the biggest history buff of them all. As an undergraduate at Harvard, he majored in history and dreamed of becoming a professor. He routinely punctuates his public speeches with historical anecdotes and oddities.

So when Trump's solicitor general peppered the court with historical citations during arguments in the case, it was notable that they fell flat with the chief.

"The examples you give to support that," Roberts told the solicitor general, "strike me as very quirky."

[James Romoser](#) is a reporter covering the Supreme Court for The Wall Street Journal. He joined the Journal in 2025 after serving for two years as the legal editor at Politico. Before that, he was the editor of SCOTUSblog and wrote a column on legal affairs for National Journal. After graduating from...



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